

25NWLC67189 25NWLC67189

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-22

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Case Number: 25NWLC67189 Hearing Date: September 22, 2026 Dept: Y

25NWLC67189: LVNV FUNDING LLC vs EDIN E MONTERROSO

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff LVNV Funding LLC ("Plaintiff"), including the declaration of counsel. The Court finds that Plaintiff mailed Requests for Admission (RFA) to Defendant on June 22, 2026, and provided proof of service by mail. Plaintiff did not receive any responses from Defendant Edin Monterrosa ("Defendant"). Plaintiff mailed Defendant its Motion for Order Deeming Request for Admissions to Defendant Admitted and For Monetary Sanctions on August 7, 2026, and provided proof of service by mail. Defendant's address on both proofs of service match the address that Defendant identified on the Answer.

Having considered the moving papers, Plaintiff's Motion for Order Deeming Request for Admissions to Defendant Admitted is GRANTED.

The Court has reviewed Plaintiff's request for sanctions of \$810.00, including its attorney's fees for the preparation of this motion as well as filing costs. The Court finds Plaintiff's request unreasonable and disproportionate for a collections case. Nonetheless, the Court AWARDS sanctions in favor of Plaintiff and against Defendant Edin Monterrosa in the amount of \$310.00 (1 hour for the preparation of the motion at the hourly rate at \$250 and filing costs of \$60). Defendant is ordered to pay the monetary sanctions awarded by the Court within 30 days.

The Court will revise and sign the Proposed Order reflecting the Court's ruling.

Plaintiff to give notice.